



A COMMUNITY OF CHOICE

CITY ENGINEER'S OFFICE
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

MEMO

TO: Honorable Mayor Patrick J. Collins, City of Cheyenne
Members of the City Council, City of Cheyenne

FROM: Wesley D. Bay, P.E., Deputy City Engineer

DATE: May 9th, 2022

SUBJECT: An Ordinance Adopting Chapter 13.28, Urban Stormwater Quality Management and Discharge Control, Public Services, of the Code of the City of Cheyenne, Wyoming.

Please find the attached proposed ordinance related to urban stormwater quality management and discharge control.

The purpose and intent of this proposed ordinance is to ensure the health, safety, and general welfare of citizens, protect and enhance the water quality of watercourses and water bodies in a manner pursuant to and consistent with the Federal Clean Water Act (33 U.S.C. § 1251 et seq.) by reducing pollutants in stormwater discharges to the maximum extent practicable and by prohibiting non-stormwater discharges to the municipal separate storm sewer system (MS4) and to establish legal authority to carry out all inspection, surveillance and monitoring procedures necessary to ensure compliance. The EPA is pushing the WyDEQ to obtain compliance from its MS4 communities in Wyoming (Cheyenne and Casper) to have procedures in place for full compliance with the Federal Clean Water Act. This includes establishing legal authority to carry out inspection, surveillance, monitoring, and enforcement procedures.

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE CREATING CHAPTER 13.28, URBAN STORMWATER QUALITY MANAGEMENT AND DISCHARGE CONTROL, PUBLIC SERVICES, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING.”

BE IT HEREBY ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE WYOMING:

Section 1. That a new Chapter 13.28, Urban Stormwater Quality Management and Discharge Control, Public Services, of the code of the City of Cheyenne, Wyoming, is hereby created as set out in this ordinance.

Title 13 - PUBLIC SERVICES

Chapters:

Chapter 13.28, URBAN STORMWATER QUALITY MANAGEMENT AND DISCHARGE CONTROL

Sections:

13.28.010 Title.

This chapter shall be known as the “Urban Stormwater Quality management and Discharge Control Ordinance” of the city of Cheyenne and may be so cited.

13.28.020 Purpose and intent.

The purpose and intent of this chapter is to ensure the health, safety, and general welfare of citizens, protect and enhance the water quality of watercourses and water bodies in a manner pursuant to and consistent with the Federal Clean Water Act (33 U.S.C. § 1251 et seq.) by reducing pollutants in stormwater discharges to the maximum extent practicable and by prohibiting non-stormwater discharges to the municipal separate storm sewer system (MS4) and to establish legal authority to carry out all inspection, surveillance and monitoring procedures necessary to ensure compliance.

13.28.030 Applicability.

This chapter shall apply to all water entering the storm drain system generated on any developed and undeveloped lands unless explicitly exempted by an authorized enforcement agency.

13.28.040 Definitions.

The terms used in this chapter shall have the following meanings:

A. “Best management practices” (BMPs) means schedules of activities, prohibitions of practices, general good housekeeping practices, pollution prevention and education practices, maintenance procedures, and other management practices to prevent or reduce the discharge of pollutants directly or indirectly to the municipal stormwater conveyance system and/or waters of the state. BMPs include, but are not limited to: treatment requirements; treatment facilities to remove pollutants from stormwater; operating and maintenance procedures; facility management practices to control runoff, spillage or leaks of non-stormwater, waste disposal, and drainage from materials storage; erosion and sediment control practices; and the prohibition of specific activities, practices, and procedures and such other provisions as the city determines appropriate for the control of pollutants.

B. “City” means the city of Cheyenne, Wyoming.

C. “City Engineer” means the city engineer of the city of Cheyenne or his or her appointed designee.

D. “Clean Water Act” means the Federal Water Pollution Control Act (33 U.S.C. § 1251 et seq.), and any subsequent amendments thereto.

E. “Construction activity” means clearing and grubbing, grading, demolition, construction or excavation projects which result in land disturbance of one or more (not necessarily contiguous) surface acres. Construction activity also includes the disturbance of less than one acre of total land when that disturbance is part of a larger common plan of development or the sale is part of a larger common plan that will ultimately disturb one acre or more.

F. “Hazardous materials” means any material, including any substance, waste, or combination thereof, which because of its quantity, concentration, or physical, chemical, or infectious characteristics may cause, or significantly contribute to, a substantial or potential hazard to human health, safety, property, or the environment when improperly treated, stored, transported, disposed of, or otherwise managed.

G. “Illegal discharge” means any direct or indirect non-stormwater discharge to the storm drain system, except as exempted in Section 13.28.090 of this chapter.

H. “Illicit connections” means:

1. Any drain or conveyance, whether on the surface or subsurface, which allows an illegal discharge to enter the storm drain system, including, but not limited to, any conveyances which allow certain non-stormwater discharge including sewage, process wastewater, and wash water to enter the storm drain system and any connections to the storm drain system from sinks, regardless of whether said connection had been previously allowed, permitted, or approved by a government agency; or

2. Any drain or conveyance connected from a commercial or industrial land use to the storm drain system which has not been documented in plans, maps, or equivalent records and approved by the city.

I. “Non-stormwater discharge” means any discharge to the storm sewer system that is not composed entirely of stormwater.

J. “One acre” includes any land disturbance of less than one acre of total land when that disturbance is part of a larger common plan of development or the sale is part of a larger common plan that will ultimately disturb one acre or more.

K. “Person” means any individual person, developer, contractor, partnership, corporation, association, estate, trust, or two or more individuals having a joint or common interest in property.

L. “Pollutant” means any substance or hazardous material that causes or contributes to pollution. Pollutants may include, but are not limited to: paints, varnishes, and solvents; oil and other automotive fluids; nonhazardous liquid, solid wastes and yard wastes; refuse, rubbish, garbage, litter, or other discarded or abandoned objects, articles, and accumulations, so that same may cause or contribute to pollution; floatables; pesticides, herbicides, and fertilizers; hazardous substances and wastes; sewage, fecal coliform and pathogens; dissolved and particulate metals; animal wastes; wastes and residues that result from constructing a building or structure (including, but not limited to, sediments, slurries, and concrete rinsates); and noxious or offensive matter of any kind.

M. “Pollution” means the human-made or human-induced alteration of the quality of waters by a pollutant or waste to a degree which affects, or has the potential to affect, either the waters for beneficial uses, the facilities which serve these beneficial uses, or results in a violation of water quality standards of the state.

N. “Premises” means any building, lot, parcel of land, or portion of land whether improved or unimproved including adjacent sidewalks and parking strips.

O. “Storm drain system” means any publicly or privately owned facilities by which stormwater is collected and/or conveyed, including, but not limited to, any roads with drainage systems, municipal streets, gutters, curbs, inlets, piped storm drains, pumping facilities, retention and detention basins, natural and human-made or altered drainage channels, reservoirs, and other drainage structures which are within the city.

P. “Stormwater” means any stormwater runoff, snowmelt runoff, and surface runoff and drainage.

Q. “Stormwater Pollution Prevention Plan” is a document which describes the best management practices and activities to be implemented by a person or business to identify sources of pollution or contamination at a site and the actions to eliminate or reduce pollutant discharges to stormwater, stormwater conveyance systems, and/or receiving waters to the maximum extent practicable.

R. “Surface waters of the state” means all permanent and intermittent defined drainages and lakes, reservoirs, and wetlands which are not manmade retention ponds used for the treatment of municipal, agricultural or industrial waste; and all other bodies of surface water, either public or private, which are wholly or partially within the boundaries of the state. Surface waters include all natural waterways and definite channels and depressions in the earth that may carry water, even though such waterways may only carry water during rains and storms and may not carry stormwater at and during all times and seasons.

S. “Wyoming Pollutant Discharge Elimination System Permit (WYPDES)” means general, group, and individual stormwater discharge permits that regulate facilities located within the state of Wyoming which are, or may, discharge stormwater associated with construction activities. The WYPDES permit issued by the Wyoming Department of Environmental Quality authorizes discharge to surface waters of the state of Wyoming upon compliance with the requirements of the Wyoming Department of Environmental Quality.

T. “Wyoming Water Quality Standards” means the Wyoming Department of Environmental Quality published water quality rules and regulations (Chapter 1) as they may be amended from time to time.

13.28.050 Responsibility for administration.

The city engineer shall administer, implement, and enforce the provisions of this chapter. Any powers granted or duties imposed upon the city engineer may be delegated by the city engineer to persons or entities acting in the beneficial interest of or in the employ of the city.

13.28.060 Severability.

If any provision, clause, sentence, or paragraph of this chapter or the application thereof to any person, establishment, or circumstances shall be held invalid, such invalidity shall not affect the other provisions or application of this chapter.

13.28.070 Regulatory consistency.

This chapter shall be construed to assure consistency with the requirements of the Clean Water Act and acts amendatory thereof or supplementary thereto, or any applicable implementing regulations under the Wyoming Pollutant Discharge Elimination System (WYPDES) General Permit to discharge stormwater from Municipal Separate Storm Sewer Systems (MS4s).

13.28.080 Ultimate responsibility of discharger.

The standards set forth herein and promulgated pursuant to this chapter are minimum standards; therefore this chapter does not intend nor imply that compliance by any person will ensure that there will be no contamination, pollution, nor unauthorized discharge of pollutants into surface waters of the state caused by said person. This chapter shall not create liability on the part of the city of Cheyenne, or any agent or employee thereof, for any damages that result from any discharger's reliance on this chapter or any administrative decision lawfully made thereunder.

13.28.090 Ultimate responsibility of discharger.

No person shall discharge or cause to be discharged into the municipal storm drain system or watercourses any materials, including, but not limited to, pollutants or waters containing any pollutants that cause or contribute to a violation of Wyoming Water Quality Standards, other than stormwater.

The commencement, conduct or continuance of any illegal discharge to the storm drain system is prohibited except as described as follows:

A. Discharges from the following activities will not be considered a source of pollutants to the storm drain system and to surface waters of the state when properly managed to ensure that no potential pollutants are present, and therefore they shall not be considered illegal discharges unless determined to cause a violation of the provisions of the Clean Water Act, the

Wyoming Water Quality Standards, or this chapter: potable water line flushing; unpolluted pumped groundwater and other discharges from potable water sources; landscape irrigation and lawn watering; diverted stream flows; rising groundwater; groundwater infiltration to the storm drain system; unpolluted foundation and footing drains; unpolluted water from crawl space pumps; air conditioning condensation; unpolluted non-industrial roof drains; springs; individual residential car washing; flows from riparian habitats and wetlands; unpolluted street wash waters; and flows from fire fighting.

B. The prohibition shall not apply to any non-stormwater discharge permitted under a WYPDES permit, waiver, or waste discharge order issued to the discharger and administered by the state of Wyoming under the authority of the Federal Environmental Protection Agency, provided that the discharger is in full compliance with all requirements of the permit, waiver, or order and other applicable laws and regulations, and provided that written approval has been granted by the city of Cheyenne for any discharge to the storm drain system.

C. With written concurrence from the Wyoming Department of Environmental Quality, the city of Cheyenne may exempt in writing other non-stormwater discharges which are not a source of pollutants to the storm drain system, nor surface waters of the state.

13.28.100 Prohibition of illicit connections.

A. The construction, use, maintenance or continued existence of illicit connections to the storm drain system is prohibited.

B. This prohibition expressly includes, without limitation, illicit connections made in the past, regardless of whether the connection was permissible under law or practices applicable or prevailing at the time of connection.

C. A person is considered to be in violation of the Ordinance if the person connects a line conveying sewage to the storm sewer system or allows such a connection to continue.

13.28.110 Waste disposal prohibitions.

No person shall throw, deposit, leave, dump, maintain, keep, or permit to be thrown, deposited, left, or maintained, or otherwise expose any chemical, fuel, animal waste, septic waste, refuse, rubbish, garbage, litter, or other discarded or abandoned objects, articles, and accumulations, in or upon any public driveway, parking area, street, alley, sidewalk, component of the storm drain system, or surface waters of the state, so that the same may cause or contribute to pollution. Wastes deposited in proper waste receptacles for the purposes of collection are exempted from this prohibition. Any spills, discharge, or residues shall be removed as soon as possible and disposed of properly.

13.28.120 Discharges in violation of industrial or construction activity WYPDES stormwater discharge permit.

Any person subject to an industrial or construction activity WYPDES stormwater discharge permit shall comply with all provisions of such permit. Proof of compliance with said permit may

be required in a form acceptable to the city engineer prior to or as a condition of a subdivision map, site plan, building permit, or development or improvement plan; upon inspection of the facility; during any enforcement proceeding or action; or for any other reasonable cause.

13.28.130 Requirement to prevent, control, and reduce stormwater pollutants.

A. Authorization to Adopt and Impose Best Management Practices. Where best management practices requirements are promulgated by the city or any federal, state of Wyoming, or regional agency for any activity, operation, or facility which would otherwise cause the discharge of pollutants to the storm drain system or surface waters of the state, every person undertaking such activity or operation, or owning or operating such facility shall comply with such requirements.

B. New Development and Redevelopment. The city may adopt requirements identifying appropriate best management practices to control the volume, rate, and potential pollutant load, such as sediment loading, of stormwater runoff from new development and redevelopment projects as may be appropriate to minimize the generation, transport and discharge of pollutants. The city shall incorporate such requirements in any land use agreement, entitlement, construction or building-related permit to be issued relative to such development or redevelopment. The owner and developer shall comply with the terms, provisions, and conditions of such land use agreements or entitlements and building permits as required in this chapter.

C. Responsibility to Implement Best Management Practices. Notwithstanding the presence or absence of requirements promulgated pursuant to Section 13.28.120, subsections (A) and (B), any person engaged in activities or operations, or owning facilities or property which will or may result in pollutants entering stormwater, the storm drain system, or surface waters of the state shall implement best management practices to the extent they are technologically achievable to prevent and reduce such pollutants. The owner or operator of a commercial or industrial establishment shall provide reasonable protection from accidental discharge of prohibited materials or other wastes into the municipal storm drain system or watercourses. Facilities to prevent accidental discharge of prohibited materials or other wastes shall be provided and maintained at the owner or operator's expense.

Best management practices required by the city can be obtained from the city engineer's office by requesting the BMP list. Best management practices for urban stormwater quality management and discharge control may include, but are not limited to, one or more of the following listed practices:

1. Vegetated buffers.
2. Vegetated swales.
3. Catch basin inserts.
4. Catch basin filter covers.
5. Infiltration trenches.
6. Oil skimmers.
7. Pollutant separators.

8. In-line filters; silt fencing.
9. Wind erosion control.

13.28.140 Requirement to eliminate illegal discharges.

Notwithstanding the requirements of Section 13.28.190 herein, the city engineer may require by written notice that a person responsible for an illegal discharge immediately, or by a specified date, discontinue the discharge and, if necessary, take measures to eliminate the source of the discharge to prevent the occurrence of future illegal discharges. For failure of the respondent to comply with the City Engineer's requirement to eliminate an illegal discharge, a fine may be assessed by the city up to a maximum amount of \$10,000 as allowed under this City ordinance.

13.28.150 Requirement to eliminate or secure approval for illicit connections.

- A. The city engineer may require by written notice that a person responsible for an illicit connection to the storm drain system comply with the requirements of this chapter to eliminate or secure approval for the connection by a specified date, regardless of whether or not the connection or discharges to it had been established or approved prior to the effective date of this chapter. Failure of the respondent to comply with the City Engineer's requirements by the specified date in the written notice may result in a fine being assessed by the city up to a maximum amount of \$10,000 as allowed under this City ordinance.
- B. If, subsequent to eliminating a connection found to be in violation of this chapter, the responsible person can demonstrate that an illegal discharge will no longer occur, said person may request city approval to reconnect. The reconnection or reinstallation of the connection shall be at the responsible person's expense.

13.28.160 Watercourse protection.

Every person owning property through which a watercourse passes or abuts, or such person's lessee, shall keep and maintain that part of the watercourse free of trash, debris, and other obstacles that would pollute or contaminate the flow of water through the watercourse. In addition, the owner or lessee shall maintain existing privately owned structures within, abutting, or adjacent to a watercourse, so that such structures will not become a hazard to the use, function, or physical integrity of the watercourse. The owner or lessee shall not remove healthy bank vegetation beyond that actually necessary for maintenance, nor remove said vegetation in such a manner as to increase the vulnerability of the watercourse to erosion. The property owner shall be responsible for maintaining and stabilizing that portion of the watercourse that is within or abutting their property lines in order to protect against erosion and degradation of the watercourse originating or contributed from their property.

13.28.170 Requirement to remediate.

Whenever the city engineer finds that a discharge of pollutants is taking place or has occurred which will result in or has resulted in pollution of stormwater, the storm drain system, or surface waters of the state, the city engineer may require, by written notice to the owner of the property and/or the responsible person, that the pollution be remediated and the affected property restored within a specified time pursuant to the provisions of Sections 13.28.210 through 13.28.230 below. Failure of the respondent to comply with the City Engineer's requirements by the specified date in the written notice may result in a fine being assessed by the city up to a maximum amount of \$10,000 as allowed under this City ordinance.

13.28.180 Requirement to monitor and analyze.

The city engineer may require, by written notice of requirement, that any person engaged in any activity and/or owning or operating any facility which may cause or contribute to stormwater pollution, illegal discharges, and/or non-stormwater discharges to the storm drain system or surface waters of the state, to undertake, at said person's expense, such monitoring and analyses and furnish such reports to the city of Cheyenne as deemed necessary to determine compliance with this chapter. Failure of the respondent to comply with the City Engineer's requirements may result in city staff or a contractor designated by the city engineer undertaking the monitoring and analyses at said person's expense including a fine being assessed by the city up to a maximum amount of \$10,000 as allowed under this City ordinance.

13.28.190 Notification of spills.

Notwithstanding other requirements of law, as soon as any person responsible for a facility or operation, or responsible for emergency response for a facility or operation has information of any known or suspected release of materials which are resulting or may result in illegal discharges or pollutants discharging into stormwater, the storm drain system, or surface waters of the state from said facility, said person shall take all necessary steps to ensure the discovery, containment, and cleanup of such release. In the event of such a release of a hazardous material, said person shall immediately notify emergency response officials (dial 911) of the occurrence via emergency dispatch services. In the event of a release of nonhazardous materials, said person shall notify emergency response officials (dial 911) within two hours of the discovery of the discharge. If the discharge of prohibited materials emanates from a commercial or industrial establishment, the owner or operator of such establishment shall also retain an on-site written record of the discharge and the actions taken to prevent its recurrence.

13.28.200 Authority to inspect.

The city engineer, or his designee, may make periodic inspections for the purpose of seeing that this chapter is complied with, and it is unlawful for any owner or occupant of any business building or premises to refuse such inspection, provided that the same are made at reasonable times.

13.28.210 Authority to sample, establish sampling devices, and test.

During any inspection as provided herein, the city engineer, or his designee, may take any samples and perform any testing deemed necessary to aid in the pursuit of the inquiry or to record site activities.

13.28.220 Notice of violation.

Whenever the city engineer, or his designee, finds that a person has violated a prohibition or failed to meet a requirement of this chapter, the city engineer, or his designee, may order compliance by written notice of violation to the responsible property owner and the occupant thereof. Such notice may require without limitation:

- A. The performance of monitoring, analyses, and reporting;
- B. The elimination of illicit connections or discharges;
- C. That violating discharges, practices, or operations shall cease and desist;
- D. The abatement or remediation of stormwater pollution or contamination hazards and the restoration of any affected property;
- E. Payment of a fine to cover administrative and remediation costs up to a maximum of \$10,000; and
- F. The implementation or maintenance of source control or treatment BMPs.

Whenever it shall come to the attention of the city that any of the provisions of this chapter are being violated, the city engineer, or his designee, shall serve upon the owner and the occupant of such business building or premises, a notice in writing pointing out the specific violation and requiring such person or persons to comply with the appropriate provision or provisions of this chapter. Such notice shall fix a time limit for compliance therewith and shall notify the recipient of their due process rights as established herein. Failure of the respondent to comply with the City Engineer's requirements by the specified date in the written notice may result in a fine being assessed by the city up to a maximum amount of \$10,000 as allowed under this City ordinance.

If abatement of a violation and/or restoration of affected property is required, the notice shall set forth a deadline within which such remediation or restoration must be completed. Said notice shall further advise that, should the violator fail to remediate or restore within the established deadline, the work will be done by the city, or a contractor designated by the city engineer and the expense thereof shall be charged to the violator.

13.28.230 Abatement by city.

If the violation has not been corrected pursuant to the requirements set forth in the notice of violation, or in the order of the hearing examiner, if applicable, then the city or a contractor designated by the city engineer may enter upon the subject private property and is authorized to take any and all measures necessary to abate the violation and/or restore the property. It shall be unlawful for any person, owner, agent or person in possession of any premises to refuse to allow the city or designated contractor to enter upon the premises for the purposes set forth above.

13.28.240 Appeals.

Within ten days of receiving written notice pursuant to Section 13.28.210, an affected owner or occupant may appeal the decision of the city engineer and request a hearing by filing written notice of the appeal with the City Attorney's Office. Such notice of appeal shall contain the owner or occupant's name, address, contact information and the nature and reason for their appeal. Upon receipt of said appeal request, the City Attorney's Office shall request that the municipal court schedule a hearing in front of a municipal court judge in his or her capacity as an administrative hearing examiner to determine what remediation, if any, must be accomplished, and a deadline for said remediation as well as for reimbursement to the city of any costs incurred by the city, if applicable. Said hearing shall be conducted under the Wyoming Administrative Procedure Act. The municipal court shall notify the city engineer's office, the city attorney's office, and the owner and occupant of the property of the date, time and location of said hearing and any matters incident thereto. Said hearing shall be electronically recorded by the municipal court and the municipal court shall be responsible for maintaining any files and records related to said hearing.

If the hearing examiner upholds the decision of the city engineer or otherwise requires repair, abatement, or remediation of a violation of this chapter, then the owner or occupant of the property affected shall complete such remediation or abatement within the time period set by the hearing examiner. If such action is not completed within the designated timeframe, the city may, without further notice or proceedings, enter upon the premises and effect such repairs, remediation, or abatement and may assess and charge any and all costs related thereto to the property owner, the occupant thereof, and/or the effected real property as a lien thereon, collectable as provided by the law and any such unpaid costs shall constitute a lien against the subject property.

13.28.250 Emergency abatement.

The city engineer is authorized to require immediate abatement of any violation of this chapter that constitutes an immediate threat to the health, safety or well being of the public. If any such violation is not abated immediately as directed by the city engineer, the city of Cheyenne is authorized to enter onto private property and to take any and all measures required to remediate the violation. Any expense related to such remediation undertaken by the city of Cheyenne shall be fully reimbursed by the property owner and/or responsible party. Any relief obtained under this section shall not prevent the city from seeking other and further relief authorized by law.

13.28.260 Violations.

It shall be unlawful for any person to violate any provision or fail to comply with any of the requirements of this chapter. A violation of or failure to comply with any of the requirements of this chapter shall constitute a misdemeanor and shall be punished as set forth in section 1.24.010 of city code.

13.28.270 Violations deemed a public nuisance.

In addition to the enforcement processes and penalties hereinbefore provided, any condition caused or permitted to exist in violation of any of the provisions of this chapter is a threat to public health, safety, and welfare, and is declared and deemed a nuisance, and may be summarily abated or restored by the city at the violator's expense, and/or a civil action to abate, enjoin, or otherwise compel the cessation of such nuisance may be taken by the city.

13.28.280 Acts potentially resulting in a violation of the Federal Clean Water Act.

Any person who violates any provision of this chapter or any provision of any requirement issued pursuant to this chapter may also be in violation of the Clean Water Act and may be subject to the sanctions of those acts including civil and criminal penalties. Any enforcement action authorized under this chapter shall also include written notice to the violator of such potential liability.

Section 2. That this ordinance shall be in full force and effect upon passage and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

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